

The Compass Defendants' motion to contest the application for order determining good faith settlement is **denied without prejudice**. Compass Defendants shall re-file their motion to contest after the initial written discovery which has already been served on the Settling Parties has been received and the deposition of Mr. Hoang has been completed.

3. 9:00 AM CASE NUMBER: C23-02669
CASE NAME: ALDVIN SCHAKANOVICH VS. LINDA WILLIAMS
HEARING IN RE: JOINDER TO MOTION TO CONTEST ADGFS
FILED BY: HOMEGUARD INCORPORATED, A CALIFORNIA CORPORATION
TENTATIVE RULING:

See Line 2.

4. 9:00 AM CASE NUMBER: C23-03069
CASE NAME: THERESA SULLIVAN VS. MICHELLE COLETTI
***HEARING ON MOTION IN RE: LEAVE TO FILE CROSS COMPLAINT**
FILED BY: COLETTI, MICHELLE
TENTATIVE RULING:

The unopposed motion of Defendant Coletti to file the Cross-Complaint attached as Exhibit A to the Declaration of Scott E. Radcliffe filed herein on August 4, 2026 is **granted**. Defendant to file the Cross-Complaint within 10 days of service of entry of this order.

5. 9:00 AM CASE NUMBER: C24-01956
CASE NAME: JAMES MARITIME HOLDINGS, INC. VS. MATTHEW MATERAZO
***HEARING ON MOTION IN RE: AN ORDER FINDING MATTHEW C. MATERAZO IN CONTEMPT OF COURT.**
FILED BY:
TENTATIVE RULING:

Notice of withdraw of Motion was filed by Plaintiff's counsel. Motion hearing is vacated.

6. 9:00 AM CASE NUMBER: C25-00031
CASE NAME: THEODORE VIGIL VS. FUTURE FORD OF CONCORD
***HEARING ON MOTION IN RE: MOTION TO CONSOLIDATE HEARINGS FOR LONG CAUSE SETTING AND FOR COURT REPORTER**
FILED BY: VIGIL, THEODORE JOSEPH
TENTATIVE RULING:

The order granting the Defendant's motion to compel arbitration and stay this case was signed on August 7, 2025, filed August 11, 2025, and Notice of the Entry of the Order was served August 14, 2025.

Once an arbitration motion is granted and a lawsuit stayed, "the action at law sits in the twilight zone

of abatement with the trial court retaining merely vestigial jurisdiction over matters submitted to arbitration." (*Brock v. Kaiser Foundation Hospitals* (1992) 10 Cal.App.4th 1790, 1796.) These matters include whether upon conclusion of the arbitration proceedings, whether there was an award on the merits and to determine any subsequent petition involving the same agreement to arbitrate and the same controversy, and any such subsequent petition shall be filed in the same proceeding. (*Division of Labor Standards Enforcement v. Williams* (1981) 121 Cal.App.3d 302, 309; see also CCP § 1292.6.) Plaintiff does not describe any of the instances where this Court would retain its jurisdiction.

Plaintiff has not obtained an order lifting the stay. The court has no jurisdiction to rule on the motion to consolidate hearings.

7. 9:00 AM CASE NUMBER: C25-00031

CASE NAME: THEODORE VIGIL VS. FUTURE FORD OF CONCORD

***HEARING ON MOTION IN RE: VACATE VOID UNDER CCP 473 DUE TO FRAUDULENT SERVICE AND DEPRIVATION**

FILED BY: VIGIL, THEODORE JOSEPH

TENTATIVE RULING:

The order granting the Defendant's motion to compel arbitration and stay this case was signed on August 7, 2025, filed August 11, 2025, and Notice of the Entry of the Order was served August 14, 2025.

Once an arbitration motion is granted and a lawsuit stayed, "the action at law sits in the twilight zone of abatement with the trial court retaining merely vestigial jurisdiction over matters submitted to arbitration." (*Brock v. Kaiser Foundation Hospitals* (1992) 10 Cal.App.4th 1790, 1796.) These matters include whether upon conclusion of the arbitration proceedings, whether there was an award on the merits and to determine any subsequent petition involving the same agreement to arbitrate and the same controversy, and any such subsequent petition shall be filed in the same proceeding. (*Division of Labor Standards Enforcement v. Williams* (1981) 121 Cal.App.3d 302, 309; see also CCP § 1292.6.) Plaintiff does not describe any of the instances where this Court would retain its jurisdiction.

Plaintiff has not obtained an order lifting the stay. The court has no jurisdiction to rule on this motion.

8. 9:00 AM CASE NUMBER: C25-00031

CASE NAME: THEODORE VIGIL VS. FUTURE FORD OF CONCORD

***HEARING ON MOTION IN RE: FOR RECONSIDERATION OF ORDER GRANTING DEF'S MOTION TO COMPEL ARBITRATION**

FILED BY: VIGIL, THEODORE JOSEPH

TENTATIVE RULING:

Introduction

Before the Court is Plaintiff Theodore-Josheph Vigil's Motion for Reconsideration of the July 18, 2025, Order granting Defendant Future Ford of Concord's Motion to Compel Arbitration.

For the reasons explained below, **Plaintiff's Motion for Reconsideration is denied.**